



File No.: EXP202310875

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 25, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN with NIF G88409586 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

After stating that no personal data has been provided to the aforementioned Association, the complainant asserts that the respondent exposes, without prior consent, their identifying data, such as name and surname, in responses made by that entity to reviews left by other people on its GOOGLE profile.

The complainant states that the review refers to a judgment from a procedure initiated between ASOCIACIÓN PROYECTO EDUKA against the complainant, which leads them to believe that data has been communicated between these associations without their consent. However, the complainant does not provide evidence of this data communication between associations, which would prove that such a judgment was provided by that Association to the respondent, nor that this is the judgment referred to in the reviews in question.

The complainant provides three screenshots of the Google profile of the Escuela Nacional de Equitación – ENE – where responses to negative comments regarding the respondent left by other people on that profile are shown. The text of the responses from the respondent to these comments is reproduced in Proven Fact Two.

The complainant believes that the stated facts constitute processing without a legitimate basis and that the duty to inform about the processing of data has been omitted.

SECOND: On August 1, 2023, the General Subdirectorate of Data Inspection of the AEPD accessed the business profile of the respondent, verifying that the reviews and the responses to them that are the subject of the complaint remain visible. Regarding the date of these reviews, it is indicated “One month ago,” “Four months ago,” and “Six months ago.”

It is also confirmed that there is another review with a similar response, with the same text transcribed in Background One. It includes the indication “Seven months ago.”

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on August 2, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on August 13, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail on August 14, 2023, which was returned marked “Absent (not collected at the office).”

No response has been received to this forwarding letter.

FOURTH: On September 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: To understand the corporate purpose of the respondent, the following link is followed: “Who we

are - Escuela Nacional de Equitación (escuelanacionalequitacion.es).”

Following this link leads to their website where it publicly indicates, among other aspects, the following: “The ESCUELA NACIONAL DE EQUITACIÓN (ENE) is an initiative driven by the Eduka Chair of studies, specifically by its group of researchers from the Equestrian Campus, created at the Rey Juan Carlos University.

(...) its purpose is the professionalization of the leisure, free time, active tourism, adventure, sports practice, and specific vocational training sector.”

(...)

(...) to the already well-structured training offer, international studies of the Anglo-Saxon system of levels for Basic Equestrian levels I and II (3rd and 4th of ESO) were added, which allow for the possibility of taking an International Baccalaureate in Equestrianism (first and second year of level III), with academic validity (equivalent to 1st and 2nd of Baccalaureate), allowing the student access to any university in the world; or

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continue with the university degree in Horse Science and Equestrianism (levels IV, V, and VI).

(...)

(...) the ENE, with its headquarters at the High-Performance Center Finca Equilibrium in Torrelaguna, Madrid, has an important network of affiliated centers, where various equestrian specialties and trades are practiced; (...).

(...) the teaching vocation that marks the main line of work of the ENE, since without education the progress of the sector is impossible, has allowed it to enjoy authorization as an accredited educational center for special regime sports education in Equestrianism, recognized by Resolution of November 25, 2020 (published in the Official Bulletin of the Junta de Castilla y León on Wednesday, December 9, 2020), by the Ministry of Education of the Junta de Castilla y León (center code 05009911), and by Order 1560/2021 of June 1 and Order 4068/2023 of October 23, from the Ministry of Education of the Community of Madrid (center codes 28080700 and 28082058 respectively); as well as being the first University Chair in the subject, able to provide the official and valid teachings for all of Europe, which the various participating universities in the project are circulating, to achieve the intended professionalization of Equestrianism in Spain.”

SIXTH: On March 11, 2024, the General Subdirectorate of Data Inspection of the AEPD confirmed that the reviews mentioned in Background First and Second and the responses to them made by the complained party remain visible on the Google business profile of this entity.

SEVENTH: On April 4, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 6 of the GDPR and Article 14 of the GDPR, classified under Article 83.5 of the GDPR.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party. Article 64.2.f) of the LPACAP -provision of which the complained party was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not formulated allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

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In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The respondent has stated before this Agency that it has not provided any personal data to the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN and that it has omitted the duty to inform about the processing of its personal data by the same.

SECOND: The entity ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN published on its Google profile, without any access restrictions, three reviews with the following text:

“Hello... (name and surname of the person being responded to), we are taking legal action against those who defame the name of the company. When someone, lacking the truth and of course without written arguments, slanders the good name of an institution, it is obliged to take legal action to protect its image, as we have been doing in cases where there is already a firm conviction against A.A.A. (...), for example, and other individuals prosecuted for this same matter. If you want to know it personally, we are transparent and will send you a copy of the sentence, and any documentation you need to demonstrate our good conduct. We demand an immediate rectification before filing the corresponding criminal complaint for slander. Best regards.” (response used on two occasions).

“Hello... (name of the person being responded to). We regret that you say that... However, we inform you that we are taking legal action against those who defame the name of the company. When someone, lacking the truth and of course without written arguments, slanders the good name of an institution, it is obliged to take legal action to protect its image, as we have been doing in cases where there is already a firm conviction against A.A.A. (...), for example, and other individuals prosecuted for this same...”.

With these reviews or comments, the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN responds to negative comments regarding the respondent that other individuals left on the mentioned profile.

A copy of these reviews was submitted to the proceedings by the claimant with their complaint dated June 25, 2023.

THIRD: On August 1, 2023, the General Sub-Directorate for Data Inspection of the AEPD accessed the business profile of the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN, verifying that, as of that date, the comments indicated in Proven Fact Second remained visible. Regarding the date of these reviews, it is indicated “One month ago,” “Four months ago,” and “Six months ago.”

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It was also confirmed that there is another review published with a similar response, with the same text transcribed in Proven Fact Second. It includes the indication “Seven months ago.”

FOURTH: On March 11, 2024, the General Sub-Directorate for Data Inspection of the AEPD confirmed that the reviews mentioned in Proven Facts Second and Third and the responses to them made by the respondent remained visible on the Google business profile of the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, it is claimed that, without prior consent, the identifying data of the claimant, such as name and surname, have been disseminated in responses made by this entity to reviews left by other individuals on its GOOGLE profile.

III

Article 6 of the GDPR

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data, stating the following:

"1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

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- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

- d) the processing is necessary to protect vital interests of the data subject or of another natural person;

- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child. The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

It is considered that the facts presented, namely, disseminating personal data of the claimant, such as name and surname, on the GOOGLE profile of the entity being claimed, without prior consent or any other lawful basis, implies processing of personal data by the entity being claimed despite lacking the necessary legitimacy for it.

IV

Typification of Article 6 of the GDPR

The aforementioned infringement of Article 6 of the GDPR could constitute the commission of the infringement typified in Article 83.5 of the GDPR, which under the heading "General conditions for imposing administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD

indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein shall be considered very serious and shall be subject to a three-year statute of limitations, particularly the following:

b) The processing of data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679. (...)”

V

Article 14 of the GDPR

Article 14 of the GDPR, regarding the information that must be provided when personal data has not been obtained from the data subject, establishes the following:

“1. When personal data has not been obtained from the data subject, the data controller shall provide the following information:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing;
- d) the categories of personal data concerned;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a recipient in a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate safeguards and the means to obtain a copy thereof or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject with the following information necessary to ensure fair and transparent processing of data concerning the data subject:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) where the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the data controller or a third party;
- c) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, and to object to the processing, as well as the right to data portability;
- d) where the processing is based on Article 6, paragraph 1, letter a), or Article

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9. Section 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;

e) the right to lodge a complaint with a supervisory authority;

f) the source from which the personal data originates and, where applicable, whether it comes from publicly accessible sources;

g) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and expected consequences of such processing for the data subject.

3. The data controller shall provide the information indicated in paragraphs 1 and 2:

- a) within a reasonable period, once the personal data has been obtained, and no later than within one month, taking into account the specific circumstances in which the data is processed;
- b) if the personal data is to be used for communication with the data subject, no later than at the time of the first communication to that data subject, or
- c) if it is intended to communicate it to another recipient, no later than at the time when the personal

data is communicated for the first time.

4. When the data controller intends to process the personal data for a purpose other than that for which it was obtained, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information indicated in paragraph 2.

5. The provisions of paragraphs 1 to 4 shall not apply when and to the extent that:

- a) the data subject already has the information;
- b) the communication of such information proves impossible or would involve a disproportionate effort, in particular for processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, subject to the conditions and safeguards referred to in Article 89, paragraph 1, or to the extent that the obligation mentioned in paragraph 1 of this article may prevent or seriously hinder the achievement of the objectives of such processing. In such cases, the controller shall take appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, including making the information public;
- c) the obtaining or communication is expressly laid down by Union or Member State law applicable to the data controller and which provides for appropriate measures to protect the legitimate interests of the data subject, or
- d) when the personal data must continue to be kept confidential based on a professional secrecy obligation governed by Union or Member State law, including a statutory obligation of secrecy."

In this case, it is established that the respondent has the data of the complainant, at least the name and first surname, without having provided any evidence regarding the collection of such data directly from the complainant, who, on the other hand, has denied having had any contact with the respondent. Thus, the respondent should have informed the complainant once it obtained their personal data from a third party, in the sense expressed in the aforementioned Article 14 of the GDPR.

Therefore, it is considered that the facts subject to the complaint violate Article 14 of the GDPR, by failing to provide the required information in accordance with that provision, when the personal data used was not obtained from the data subject, as in this case.

VI

Classification of Article 14 of the GDPR

The aforementioned infringement of Article 14 of the GDPR could constitute the commission of the infringement classified in Article 83.5 of the GDPR which, under the heading "General conditions for imposing administrative fines," states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- b) the rights of data subjects under Articles 12 to 22."

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

VII

Graduation of sanctions

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

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"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article

for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

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“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

Sanction for the infringement of Article 6 of the GDPR.

According to the transcribed provisions, for the purpose of determining the amount of each sanction for each infringement, each fine is graduated taking into account:

Article 83.2.a) of the GDPR: “a) the nature, gravity, and duration of the infringement, taking into

account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered.”

The nature and gravity of the infringement, considering the context in which the personal data of the complainant is disseminated and that such dissemination occurs via the internet without any restriction.

The duration of the infringement, considering the period during which the personal data of the complainant remained visible on the Google profile of the defendant. It is stated in the Established Facts Third and Fourth that, as of August 1, 2023, the four reviews subject to the proceedings had been published for 1, 4, 6, and 7 months, respectively, and that they continued to be visible as of March 11, 2024.

Article 83.2.b) GDPR: “b) negligence in the processing of data”

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The dissemination of the personal data of the claimant carried out on four occasions through the publication of a review with a practically identical text is the result of intentional conduct by the respondent.

Considering the factors presented, the amount of the fine is €2,000 for the infringement of Article 6 of the aforementioned GDPR, for processing personal data without legitimacy, which implies that we are dealing with unlawful processing.

Sanction for the infringement of Article 14 of the GDPR.

In accordance with the transcribed provisions, for the purpose of determining the amount of each sanction for each infringement, each fine is graduated taking into account:

Article 83.2.a) of the GDPR: “a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered.”

The nature and gravity of the infringement, as the failure to comply with the obligation to provide information in a case where the personal data of the claimant was obtained from a third party affects the ability of the data subject to exercise true control over their data.

Considering the factors presented, the fine for the infringement of Article 14 of the GDPR is €2,000 (two thousand euros).

VIII

Measures

It is agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In this act, it is established what the infringement committed has been and the facts that give rise to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

In this specific case, this Agency requires the responsible entity to, within one month from the day following the notification of this resolution, demonstrate that it has proceeded to the complete deletion of the personal data of the claimant.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN, with NIF G88409586, a fine of 4,000 euros (four thousand euros) for an infringement of Article 6 of the GDPR and Article 14 of the GDPR, classified under Article 83.5 of the GDPR. This amount is derived from the sum of two sanctions of 2,000 € for the infringements of Articles 6 and 14 of the GDPR, classified under Article 83.5 of the GDPR and for the purposes of prescription, under Articles 72.1 b) and 72.1 h) of the LOPDGDD respectively.

SECOND: TO ORDER the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN to, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, within one month from the day following the notification of this resolution, provide evidence of having completely deleted the personal data of the complainant.

THIRD: TO NOTIFY this resolution to the ASOCIACIÓN ESCUELA NACIONAL DE EQUITACIÓN.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the

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Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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